



Drug Abuse and the Rehabilitation Act

Overview

Current drug addiction was once considered a disability under the Rehabilitation Act, which entitled an addict to reasonable accommodation. *See for example, Sharif v. Veterans Administration*, [87 FEOR 3133](#), EEOC No. 03850075 (EEOC 1986). However, the Rehabilitation Act was amended in 1992 to apply the standards of the Americans with Disabilities Act to complaints of discrimination filed by federal employees or applicants for employment. These standards specifically exclude individuals currently engaged in the illegal use of drugs from ADA protections. Nevertheless, under some circumstances, individuals previously addicted to drugs or erroneously thought to be drug addicts can fall within the protections of the Rehabilitation Act.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

Defining disability

- A disability, with regard to an individual, is:
 - i. A physical or mental impairment that substantially limits one or more of the major life activities of such individual;
 - ii. A record of such an impairment; or
 - iii. Being regarded as having such an impairment. [42 USC 12102](#) (1).
- The interpretation of the definition of disability is to be read broadly under the ADA Amendments Act. In its introduction to the act, Congress states its intent that "the primary object of attention in cases brought under the ADA should be whether entities covered under the ADA have complied with their obligations" and that "the question of whether an individual's impairment is a disability under the ADA should not demand extensive analysis." [42 USC 12101](#).
- For specific information on determining whether an individual falls within the protections of the Rehabilitation Act, please see the [Quick Start Guide: Disability Discrimination -- The Basics](#).

Protected under Rehabilitation Act

- An individual *currently* engaging in the illegal use of drugs is not considered an individual with a disability or qualified when an employee acts on the basis of that use. [29 CFR 1630.3](#).
- An individual is not excluded from the protections of the Rehabilitation Act if she: i) has been successfully rehabilitated and is no longer engaged in the illegal use of drugs; ii) is currently participating in a supervised drug treatment program and is no longer engaged in the illegal use of drugs; or iii) is erroneously regarded as engaging in the illegal use of drugs. [29 CFR 1630.3](#) (b).
- **Hadley:** The EEOC now consistently holds that employees who are engaged in current drug use are not included within the definition of a disability under the ADA amendments to the Rehabilitation Act. Likewise, enrolling in "after-the-fact" treatment when the agency discovers the drug use does not entitle the individual to reasonable accommodation. *Hadley Guide to Federal Sector Equal Employment Law and Practice: 1991 Civil Rights Act and ADA*.
- It is not unlawful for an agency to develop procedures, including but not limited to drug testing, in order to ensure that an individual who previously engaged in illegal drug use is no longer doing so. [29 CFR 1630.3](#) (c).
- At the time the agency denied the complainant reinstatement, he was an individual with "a record" of a disability based on the evidence of the agency's knowledge of his status as a rehabilitated drug addict and associated history of former drug addiction. However, the agency was not required to excuse prior misconduct and reinstate the complainant as a form of reasonable accommodation. *Wheeler v. U.S. Postal Service*, [2002 LRP 304](#), EEOC No. 01990064 (EEOC 2002).
- An EEOC administrative judge erred in finding that the agency regarded the complainant as an individual with a disability. There was no evidence that any agency employee erroneously thought the complainant was addicted to a controlled substance. The complainant had previously resigned while removal charges were pending, and agency policy precluded rehiring him. *James v. U.S. Postal Service*, [102 FEOR 30040](#), EEOC No. 07A10011 (EEOC 2002).
- Although the complainant asserted that he was subjected to disability discrimination because he was erroneously perceived as an illegal drug user, the EEOC found that he failed to substantiate his claim and therefore did not fall within the protections of the Rehabilitation Act. *Nance v. Department of the Navy*, [99 FEOR 3098](#), EEOC No. 01964338 (EEOC 1998).

- An air traffic control specialist alleged that he was subjected to disability discrimination when he was removed during his probationary period because he failed a drug test after using prescribed medication. The agency dismissed the complaint for failure to state a claim, reasoning that the claim was a collateral attack on a non-EEO proceeding. The EEOC reversed on appeal, concluding that the agency's drug testing program was not an adjudicatory proceeding but a medical test and therefore, could not be the subject of an impermissible collateral attack. The specialist's claim was that his employment was discriminatorily removed, a claim that clearly rendered him aggrieved. The EEOC explained that how and why the drug test played into the removal decision was irrelevant to the procedural issue of whether he stated a justiciable claim and could only be properly addressed following an investigation and further processing on the merits of the claim. *Erich A. v. Department of Transportation, Federal Aviation Administration*, [122 LRP 25800](#), EEOC No. 2022002678 (EEOC OFO 2022).

Current illegal drug use

- "The term 'illegal use of drugs' means the use of drugs, the possession or distribution of which is unlawful under the Controlled Substance Act, but does not include the use of drugs taken under supervision by a licensed health care professional, or other uses authorized by the Controlled Substances Act or other provisions of federal law." [29 CFR 1630.3](#) (a).
- It is permissible to bar employment to an individual who currently and knowingly uses or possesses a controlled substance unless "such a rule is adopted or applied with an intent to discriminate because of race, color, religion, sex, or national origin." [42 USC Section 2000e-2\(k\)\(3\)](#).
- As a current user of illegal drugs, the petitioner was excluded from Rehabilitation Act protection. *Lucas v. Department of the Army*, [104 LRP 4444](#), EEOC No. 03A40005 (EEOC 2004).
- A city carrier was not subjected to disability discrimination when she was issued a notice of removal after she tested positive for illegal drug use. She was unfit for duty because she could not safely drive a postal vehicle as a result of her continued drug use. *Mora v. U.S. Postal Service*, [105 LRP 20329](#), EEOC No. 01A50836 (EEOC OFO 2005).
- The complainant's disability discrimination claim failed because employees who are currently engaged in the illegal use of drugs are specifically excluded from the definition of "individual with a disability" under EEOC regulations. The complainant's after-the-fact enrollment in a treatment program did not entitle him to reasonable accommodation. *Moss v. U.S. Postal Service*, [100 FEOR 3187](#), EEOC No. 01976498 (EEOC 2000).
- Although the complainant apparently was successfully rehabilitated at a later date, his drug addiction did not entitle him to the protections the Rehabilitation Act because, at the time of his misconduct and removal, he was engaged in the illegal use of drugs. *Davis v. Department of the Army*, [94 FEOR 3224](#), EEOC No. 03930085 (EEOC 1993).

Misconduct

- Under the October 1992 amendments to the Rehabilitation Act, agencies are permitted to hold employees who engage in the illegal use of drugs to the same standards for job performance as other employees, even if misconduct or unsatisfactory performance is related to the employee's drug use. [29 CFR 1630.16](#) (b)(4).
- An applicant for a clinical pharmacist position was not subjected to unlawful discrimination based on his disability (former substance abuse disorder) when the agency rescinded a tentative job offer due to "unfavorable suitability screening/background check." The applicant had successfully completed a rehabilitation program and was no longer engaging in illegal drug use. However, the agency permissibly determined that he was not suitable for employment in an agency pharmacy because he was removed from his previous employment for theft of drugs from the pharmacy, and working as a clinical pharmacist for the agency would give him access to narcotics. The EEOC found adequate evidence that the applicant's prior misconduct with pharmaceuticals while employed in another hospital could not be accommodated by the agency. *Cordell H. v. Department of Veterans Affairs, Veterans Health Administration*, [122 LRP 13841](#), EEOC No. 2021001434 (EEOC OFO 2022).
- The complainant's disparate impact discrimination claim failed because he did not present statistical evidence showing that the agency categorically rejected applicants with successfully rehabilitated substance abuse disorders. His job offer was rescinded based on his theft of drugs while working at another pharmacy, not because he disclosed his rehabilitation from a substance abuse disorder. There was no evidence that the agency applied a policy that precluded other applicants with a similar disability from being considered for agency employment. *Cordell H. v. Department of Veterans Affairs, Veterans Health Administration*, [122 LRP 13841](#), EEOC No. 2021001434 (EEOC OFO 2022).
- The agency did not subject an employee to discrimination based on her disability (fibromyalgia) when it removed her in part because of her unauthorized possession and use of medication, which she purchased from a former coworker. *Bogumill v. Department of Veterans Affairs*, [111 LRP 39770](#), EEOC No. 0320110020 (EEOC OFO 2011).
- The complainant was not subjected to disability discrimination when he was suspended and then asked to resign after he was caught stealing a package he thought contained drugs. Even if he was an individual with a disability, an agency may discipline an individual with a disability under uniformly applied conduct standards, even if the individual's misconduct stemmed from his disability. *Deal v. U.S. Postal Service*, [107 LRP 56603](#), EEOC No. 0120073201 (EEOC OFO 2007).
- The petitioner, who had worked for the agency as an electrician, alleged he was subjected to disability discrimination when he was terminated after testing positive for cocaine metabolites in a random drug test. He filed a mixed case complaint with the MSPB. The EEOC concurred with the MSPB's determination that the petitioner's removal after a positive drug test was not disability discrimination. *Lucas v. Department of the Army*, [104 LRP 4444](#), EEOC No. 03A40005 (EEOC 2004).
- The complainant previously resigned after being issued a notice of removal for pilfering a letter containing food stamps in order to pay his drug dealer. Although he completed a rehabilitation program and sought reinstatement, the agency was not required to deviate from its po

not to reinstate anyone who resigned from employment pending termination for misconduct. *Wheeler v. U.S. Postal Service*, [2002 LRP 304](#), EEOC No. 01990064 (EEOC 2002).

- The agency did not subject the complainant to disability discrimination when it refused to allow him to return to work after he made threats against an agency official and underwent treatment for illegal drug use. The EEOC noted that there was no evidence that the complainant successfully finished the drug treatment program or that he had ceased using illegal drugs. *Jackson v. U.S. Postal Service*, [9 FEOR 3061](#), EEOC No. 01960477 (EEOC 1998).

Drug testing

- **Hadley:** An "[a]gency's drug testing program is not an adjudicatory proceeding but a medical test and, therefore, cannot be the subject of impermissible collateral attack." That is what was decided in *Erich A. v. Department of Transportation*, [122 LRP 25800](#), EEOC No. 2022002678 (EEOC OFO 2022). The complainant alleged disability discrimination when he was terminated after fail a drug test. The agency dismissed for failure to state a claim, concluding that "the proper forum for Complainant to challenge the drug test was with those who had administered it [the drug test]." The Commission disagreed, found the complainant was aggrieved, and remanded the complaint for further processing. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Drug Tests -- Agency Imposed](#).
- For purposes of this part, a test to determine the illegal use of drugs is not considered a medical examination. Thus, the administration of such drug tests by a covered entity to its job applicants or employees is not a violation of Subpart 1630.13 of this part. However, this part does not encourage, prohibit, or authorize a covered entity to conduct drug tests of job applicants or employees to determine the illegal use of drugs or to make employment decisions based on such test results. [29 CFR 1630.16](#) (c)(1).
- The agency did not discriminate against the complainant when it placed him on off-duty status because of his positive drug-test results. *Bonilla-Martinez v. U.S. Postal Service*, [108 LRP 13143](#), EEOC No. 0120070639 (EEOC OFO 2008).
- The U.S. Postal Service did not subject a city carrier to discrimination based on race or disability when it removed her. The carrier entered into a last chance agreement with the agency that included a provision that if she were to test positive for drugs or alcohol while on duty, she would be in violation of the agreement and would be removed. She was sent for drug and alcohol testing after her supervisor observed she was having difficulty keeping her balance and her eyes were "red and glossy." She tested positive for alcohol and marijuana. *Complainant v. U.S. Postal Service*, [0120130190](#), [114 LRP 4344](#) (EEOC OFO 2014).

Reasonable accommodation

- An applicant for a clinical pharmacist position was not subjected to unlawful discrimination based on his disability (former substance abuse disorder) when the agency rescinded a tentative job offer due to "unfavorable suitability screening/background check." The applicant had successfully completed a rehabilitation program and was no longer engaging in illegal drug use. However, the agency permissibly determined that he was not suitable for employment in an agency pharmacy because he was removed from his previous employment for theft of drugs from the pharmacy, and working as a clinical pharmacist for the agency would give him access to narcotics. The EEOC found adequate evidence that the applicant's prior misconduct with pharmaceuticals while employed in another hospital could not be accommodated by the agency. *Cordell H. v. Department of Veterans Affairs, Veterans Health Administration*, [122 LRP 13841](#), EEOC No. 2021001434 (EEOC OFO 2022).
- Even if she was an individual with a disability, a correctional officer for the Federal Bureau of Prisons was not denied reasonable accommodation for her sleeping pill addiction. She was allowed to use leave without pay as requested. She did not establish a nexus between her addiction and her need for leave on additional days. The officer stated that she wanted the days off "for personal reasons." *Marina A. v. Department of Justice, Federal Bureau of Prisons*, [116 LRP 46215](#), EEOC No. 0120141520 (EEOC OFO 2016).

Other Resources

- [Quick Start Guide: Disability Discrimination -- The Basics](#)
- [Quick Start Guide: Disability -- Qualified Individuals](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [Quick Start Guide: Alcoholism](#)
- [Avoid discipline based on perception of alcohol or drug addiction](#)
- [Job Accommodation Network](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 01: Coverage Under The Rehabilitation Act, Section B -- Qualified Individuals, Subsection 02 -- Drug and Alcohol Abuse](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 03: Specific Disabilities, Section A -- Drug and Alcohol Abuse, Subsection 01 -- Statutory Basis](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 03: Specific Disabilities, Section A -- Drug and Alcohol Abuse,](#)

Subsection 02 -- 1991 Civil Rights Act and ADA

- *Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 03: Specific Disabilities, Section A -- Drug and Alcohol Abuse, Subsection 03 -- Evidence of Disability*

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